

Court No. - 3

Case :- WRIT - C No. - 18337 of 2016

Petitioner :- Chhotu @ Arun Kumar Singh

Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Ali Hasan,Istiyaq Ali

Counsel for Respondent :- C.S.C.,Shivam Yadav

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Learned counsel for the petitioner is permitted to incorporate the description of respondent no.2 in the array of the parties.

Sri Shivam Yadav, who has accepted notice on behalf of respondent nos.2 and 3 prays for and is allowed ten days time to seek instructions in the matter.

Put up as fresh on 10.5.2016.

Order Date :- 25.4.2016

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Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Sri Shivam Yadav, learned counsel for the respondent Nos. 2 and 3 may seek instructions in the matter within 24 hours.

Put up this case, as fresh on 12th May, 2016.

Order Date :- 10.5.2016

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Court No. - 3

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Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Ali Hasan, Istiyaq Ali

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Krishna Murari, J.

Hon'ble Prashant Kumar, J.

Heard Shri Ali Hasan for the petitioner, learned Standing counsel for the State respondents and Sri Shivam Yadav appearing for respondent nos. 1 and 2.

In pursuance to the order dated 25.04.2016, Shri Shivam Yadav has produced a copy of the instructions, which is taken on record.

It is contended on behalf of the petitioner that since he did not receive the copy of the provisional assessment notice, as such, he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 06.11.2015 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in **Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008(6) ADJ 660 (DB)** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs.1,42,569/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 06.11.2015 is hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner within 15 days from the date of production of a certified copy of this order. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in **Ashok Kumar** (supra).

Order Date :- 23.5.2016

VKS